

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 22, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	22CV406413	Fabricio German Cota vs Robbie Matar	Motion to Withdraw as Attorney Parties to appear.
<u>LINE 2</u>	26CV495044	American Auto Financing vs Watsonville Auto Sales et al.	Hearing: Order of Examination Parties to appear.

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9:00 A.M.

Calendar Lines # 1-4

Case Name Timed Out, LLC vs Liquid Restaurant and Lounge LLC

Case No. 24CV444939

Motion to Compel Further Responses to Form Interrogatories (Line # 1); Motion to Compel Further Responses to Special Interrogatories (Line #2); Motion to Compel Further Responses to Request for Production of Documents (Line #3); Motion for Admissions Deemed Admitted (Line #4); Sanctions

Before the court is Plaintiff Timed Out, LLC's ("Timed Out") motion to compel responses to the following discovery: further responses to Form Interrogatories ("FROG"); further responses to Special Interrogatories ("SPROG"); further responses to Request for Production of Documents ("RFPD"), Set One; and Motion for Sanctions against Defendant Liquid Restaurant and Lounge LLC's ("Liquid Restaurant"). On December 22, 2025, Plaintiff Timed Out filed this motion to compel further responses to **216 total discovery responses** as follows: 13 FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); 134 SPROGs (Nos. 1-134); and 69 RFPDs (Nos. 1-69).

Plaintiff Timed Out also filed a motion to compel further responses to Request for Admissions ("RFA"), Nos. 1-83 that is set for hearing on August 13, 2026. In total, Plaintiff seeks to compel ***299 further discovery responses*** for FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); SPROG (Nos. 1-134); RFPD (Nos. 1-69), and RFA (Nos. 1-83), Set One.

The Court has reviewed the plaintiff's moving papers filed on December 22, 2025; defendant Liquid Restaurant's Oppositions filed on July 2, 2026; and the plaintiff's Reply to defenses' oppositions filed on July 9, 2026 and September 9, 2026; as well as the pleadings. Defense filed another opposition on September 9, 2026, stating that the motion was moot, but the moving party has not withdrawn the motion.

On July 16, 2026, the parties appeared and the Court orders the parties to meet-and-confer and submit a joint statement no later than September 14, 2026, identifying the remaining items in dispute and why further responses should or should not be compelled. Additionally, the Court discussed having the matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1, parties were to meet and confer about private mediation or Rule 4 mediation. The court expressly noted, "Failure to comply with this order will result in consideration of sanctions."

No joint statement was filed in compliance with the Court order.

The parties are ORDERED to appear and discuss why the matter should not be taken off calendar and sanctions should not be imposed.

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